SOFTWARE DEVELOPMENT SERVICE AGREEMENT

This Software Development Service Agreement ("Agreement") is made and entered into on this 1st day of February 2026, by and between:

Client: ABC Technologies Pvt. Ltd., having its registered office in Pune, Maharashtra, India.
Service Provider: XYZ Solutions Pvt. Ltd., having its registered office in Mumbai, Maharashtra, India.

Collectively referred to as the "Parties".

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1. Scope of Services

The Service Provider agrees to design, develop, test, and deploy a web-based enterprise application for the Client. The application shall include modules for user management, reporting, and analytics.

However, the detailed technical specifications, performance benchmarks, and acceptance criteria are not fully defined within this Agreement and may be mutually decided during the course of the project.

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2. Project Timeline and Deliverables

The project shall commence within 7 days from the signing of this Agreement and is expected to be completed within 6 months.

The Service Provider shall deliver the project in phases. However, specific milestone definitions and deliverables for each phase are not clearly documented.

Any delay caused due to requirement changes, technical challenges, or dependency on third-party services shall not be considered a breach of contract.

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3. Payment Terms

The total contract value is INR 5,00,000 (Indian Rupees Five Lakhs only).

- 50% of the total amount shall be paid in advance before project initiation.
- 30% shall be paid upon completion of major development work.
- Remaining 20% shall be paid after final delivery and acceptance.

Payments must be made within 15 days of invoice generation. A penalty of 2% per month shall be charged on delayed payments.

No clear refund policy is defined in case of project failure or dissatisfaction.

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4. Change Management

Any changes in project requirements requested by the Client shall be evaluated by the Service Provider. Additional costs and timeline extensions may apply.

However, there is no formal change request process or documentation requirement defined.

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5. Confidentiality

Both Parties agree to maintain confidentiality of proprietary and sensitive information shared during the project.

However, the Agreement does not clearly specify:

- Duration of confidentiality after termination
- Types of data considered confidential
- Remedies in case of breach

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6. Intellectual Property Rights

The Agreement does not explicitly define the ownership of intellectual property rights related to the developed software, source code, or associated documentation.

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7. Data Protection and Privacy

The Service Provider shall take reasonable measures to protect data. However, this Agreement does not include detailed provisions related to:

- Data encryption
- Data storage and access control
- Compliance with data protection laws (such as IT Act or GDPR)

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8. Liability

The total liability of the Service Provider under this Agreement shall not exceed the total amount paid by the Client.

The Agreement does not include exceptions for:

- Data breaches
- Gross negligence
- Intellectual property infringement

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9. Indemnity

The Service Provider agrees to indemnify the Client against third-party claims. However, the scope and limitations of indemnity are not clearly defined.

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10. Termination

Either Party may terminate this Agreement by providing 30 days written notice.

Termination can occur without specifying any reason, even if the project is in progress.

The Agreement does not define:

- Refund obligations
- Transition support
- Handling of partially completed work

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11. Compliance with Laws

The Service Provider shall comply with all applicable Indian laws and regulations.

However, no compliance responsibilities are defined for the Client.

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12. Third-Party Dependencies

The project may depend on third-party tools, APIs, or services.

The Service Provider shall not be responsible for failures caused by such third-party services.

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13. Force Majeure

Neither Party shall be held liable for failure to perform due to events beyond their reasonable control, including natural disasters, war, pandemics, or government actions.

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14. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall be resolved through arbitration in Pune, Maharashtra, India.

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15. Governing Law

This Agreement shall be governed by and interpreted in accordance with the laws of India.

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16. Notices

All notices under this Agreement shall be in writing and sent via email or registered post to the respective addresses of the Parties.

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17. Entire Agreement

This Agreement constitutes the entire understanding between the Parties and supersedes all prior discussions, agreements, or understandings.

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18. Amendments

Any amendment to this Agreement shall be valid only if made in writing and signed by both Parties.

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19. Acceptance

By signing below, both Parties agree to the terms and conditions stated in this Agreement.

Client Signature: _____

Service Provider Signature: _____